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April 3, 2025

ENGROSSED HOUSE
BILL NO. 2731

By: Kendrix and Crosswhite
Hader of the House

and

Bergstrom of the Senate

An Act relating to the Administrative Procedures Act; amending 75 O.S. 2021, Section 308.3, as amended by Section 6, Chapter 38, O.S.L. 2023 (75 O.S. Supp. 2024, Section 308.3), which relates to joint resolutions of the Legislature; updating reference to rule submission date; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 75 O.S. 2021, Section 308.3, as amended by Section 6, Chapter 38, O.S.L. 2023 (75 O.S. Supp. 2024, Section 308.3), is amended to read as follows:

Section 308.3. A. The Legislature shall have joint resolutions prepared for consideration each session.

B. For the purpose of this section, a proposed permanent rule may be disapproved, in whole or in part, in a joint resolution considered by the Legislature.

1 C. If any rule received on or before the date established
2 pursuant to paragraph 1 of subsection A of Section 308 of this title
3 is not subject to a joint resolution passed by both houses of the
4 Legislature and signed by the Governor or is found by the Governor
5 to have a technical legal defect preventing approval of
6 administrative rules intended to be approved by the Legislature, the
7 Governor may declare any rules received on or before ~~April 1~~
8 February 1 and not subject to a joint resolution passed by both
9 houses of the Legislature to be approved or disapproved and finally
10 adopted by publishing a single declaration in "The Oklahoma
11 Register" on or before July 17. If the Governor finds that the
12 joint resolution has a technical legal defect, the Governor shall
13 make the finding in writing and submit the finding to the
14 Legislature.

15 SECTION 2. This act shall become effective November 1, 2025.

16 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES
17 April 3, 2025 - DO PASS
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